

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 Reply Brief of Appellant City of Norvale Filed May 13, 2026

The Guild's response confirms that Norvale regulates logistics rather than viewpoint. It nevertheless treats any gap between compensation and crowd size as dispositive. Narrow tailoring does not require a trigger to predict each operational consequence perfectly. Compensation identifies a planned presentation under organizer control, while the accompanying schedule, format, attendance, and site fields allow staff to assess the actual conditions. The district court separated the trigger from the information it activates and then faulted the City for using a proxy alone.

Norvale does not seek authority to censor a topic or ignore evidence. It asks the Court to apply the deference built into content-neutral tailoring and the demanding preliminary-relief standard. The pilot record, municipal findings, declarations, maps, and event history supply an evidentiary connection. The Guild's alternatives demonstrate policy choices, not a constitutional command. The order should be reversed; at minimum its Rule 65 defects require vacatur and a new operative command.

I. The issue is fit, not protection or motive

The parties agree that paid literary presentations are protected and that no official may consider viewpoint. *Billups* establishes both the need for scrutiny and the government's burden to demonstrate fit. The City does not evade that burden by invoking neutrality. It meets it with evidence that scheduled presentations concentrate audiences, create transitions, interact with loading and transit, and require advance coordination. JA23–33, JA49–64, JA93–114.

The Guild answers that direct operational questions could replace the compensation trigger. But the ordinance already uses direct questions. Payment identifies the planned category; the remaining fields describe its effect. An unpaid spontaneous conversation is different administratively from an appearance the organizer booked and advertised, even if either could attract listeners. A clear, objective category reduces discretionary line drawing and tells organizers when a complete recurring-event submission is required.

That predictability benefits applicants as well as municipal reviewers.

II. Less burdensome possibilities do not prove constitutional excess

The alternatives chart identifies schedules, formats, attendance thresholds, material-change updates, and site conditions. JA88–92. None is costless or self-defining. Attendance estimates may be inaccurate. Officials still must decide what counts as a presentation and when a change is material. A threshold could exempt a concentrated program just below a predicted number and burden an unpaid event just above it. The City may choose a workable rule without proving every other approach impossible.

The response says the district court merely considered alternatives as evidence. Yet its reasoning effectively treats direct-variable regulation as constitutionally required. JA119–121. That is least-restrictive-means analysis by another name. A content-neutral rule is narrowly tailored if it promotes the significant interest without burdening substantially more speech than necessary, not only if no judge can imagine a closer proxy.

Norvale's combined fields should be assessed as one process.

III. Amendment review remains a meaningful protection

The Guild describes every late confirmation as dependent on “unspecified grace.” The record is more concrete. Staff advised that substitutions could be requested and would be evaluated for timing and operational effect. Denials or conditions require documented risk and written reasons. JA15–38. During stay proceedings, the City offered a three-business-day review condition and neutral topic descriptions. JA125–130. Those safeguards constrain administration and permit prompt judicial review.

The absence of a guaranteed approval is not constitutional uncertainty. A replacement that changes only identity may be straightforward; one that changes format, equipment, or audience may not be. The organizer often knows those effects better than staff. Requiring a request allows the City to distinguish them. The injunction instead presumes the distinction can always be made without the ordinance while giving employees no precise operative boundary.

Written reasons make any unfavorable distinction reviewable.

IV. The fee evidence is sufficient at this stage

The Guild repeats that time records do not isolate minutes per speaker. A prospective schedule necessarily averages administrative effort. The City identified intake, interdepartmental coordination, written decisions, and presentation review as covered work. JA15–33, JA49–57. Nothing indicates general revenue, content-based variation, or a charge designed to deter speech. The amount remains modest relative to a six-date public-site series, even if it matters to individual shops.

The Constitution requires a reasonable connection to administrative cost, not perfect accounting before a municipality gains experience. The pilot period had only a few applications because the ordinance was new. Treating that short history as a failure creates an impossible rule: a City could not implement a neutral fee until it had data obtainable only after implementation. Any mismatch can be tested on a fuller merits record rather than presumed at preliminary review.

V. The Guild has not answered the other factors

The response assumes every late author will be lost. No author had been finally rejected, no amendment denied, and no topic disfavored. The Guild's planning burden is real but partially monetary and mitigated by review, unpaid programs, alternative venues, and later dates. A likely constitutional injury cannot rest solely on the possibility that a future operationally neutral substitution will not be processed in time.

Norvale, by contrast, must administer six public events consistently. Lost planning opportunities, conflicting reservations, and uncertain employee obligations cannot be repaired after a fair. The Guild says direct rules remain, but the order does not identify them with precision. That ambiguity affects the equity balance and the public interest, not merely a technical Rule 65 objection.

The City's position does not depend on violence. Preventive administration is valuable precisely when serious incidents have not occurred. The two medical calls, loading delays, service-path obstructions, and audience transitions demonstrate ordinary conditions worth coordinating. JA30–33, JA44–64. The public interest includes keeping those conditions ordinary while preserving expression.

The response says no safety measure is forbidden. Staff cannot know that confidently from a restraint against “enforcing the Paid-Speaker Permit Ordinance” paired with broad preserved categories. A request for a speaker schedule could be understood as permitted logistical review or forbidden enforcement. A condition based on a changed audience could be characterized as material or speaker linked. The order's uncertainty itself burdens sound administration.

VI. Rule 65 requires vacatur, not indefinite continuation

The Guild effectively concedes that the operative terms may lack specificity and that the court did not address security expressly. Rule 65(d) protects more than appellate neatness; it defines conduct subject to contempt. Rule 65(c) demands an exercised judgment about risks and security. An order missing both safeguards should not remain the governing coercive instrument simply because the underlying plaintiff may deserve some relief.

Pashby permits correction, but remedy depends on context. Here the order's scope is the source of immediate employee uncertainty. This Court should vacate and direct a prompt new order. If it determines a transition is necessary, it may specify a short period or narrow restraint. It should not affirm the present language and allow it to continue for an undefined remand interval.

That distinction matters to fair notice, contempt boundaries, orderly compliance, and consistent treatment among applicants.

VII. The recurring calendar does not expand the merits record

The Guild invokes *Robinson v. National Collegiate Athletic Association*, decided after the City's opening brief, to emphasize recurring events. The City acknowledges that a continuing policy and future dates may preserve a live controversy. But recurrence does not prove likely success, freeze the January facts for every event, or justify an injunction broader than the evidence. Each date has distinct reservations, rosters, traffic, weather, and operational demands.

If later events alter the concrete dispute, the district court can address them. This Court should review the January order on its certified record and avoid treating the announced calendar as proof that every future application repeats the same injury. *Robinson* concerns mootness and recurrence, not a rule that recurring plaintiffs automatically satisfy narrow tailoring or irreparable harm.

The merits still require the ordinary factor-by-factor analysis on the complete certified January record before this Court.

VIII. Proper disposition

Reversal is warranted because the Guild did not clearly establish likely constitutional invalidity and the district court demanded too exact a fit. The ordinance is neutral, evidence based, limited to planned paid presentations, paired with direct operational fields, constrained by documented-risk standards, and subject to written reasons. The alternatives and nascent enforcement history do not establish that it burdens substantially more expression than necessary.

If the Court disagrees, it should vacate for Rule 65 correction. A remand should direct the district court to list the restrained provisions, define permissible operational requests and conditions, and make an express security determination. It should preserve authority to consider current facts and narrower relief. It should not encode a “without vacatur” outcome that leaves officials bound by terms the Court has declared insufficient.

That corrective process can proceed promptly before later events without deciding permanent relief.

Conclusion

The First Amendment protects the Guild's programs and permits Norvale to coordinate a shared public park through neutral, evidence-supported rules. The preliminary injunction gave too little weight to the City's fit and too much weight to untested amendment uncertainty. Its operative language and silence on security independently fail mandatory safeguards.

The Court should reverse the order granting preliminary relief. Alternatively, it should vacate and remand for a new, precise injunction and express security analysis, with any transitional protection stated directly by this Court and limited in duration and scope. That disposition respects protected expression, municipal administration, and the procedural boundaries of an interlocutory appeal.

It also preserves a complete merits determination for the district court.

Respectfully submitted May 13, 2026, by counsel for the City of Norvale. Counsel certifies electronic service, compliance with the applicable length and typeface rules, and that no sealed or nonrecord material is included.